

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cl.]
Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.



CHAPTER cl.

An Act to confirm a Provisional Order of the Minister of Health relating to Uxbridge Joint Hospital District. A.D. 1930.
[1st August 1930.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament : 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Uxbridge Joint Hospital District) Act 1930. Short title.

[Ch. cl.] *Ministry of Health [20 & 21 GEO. 5.]*
Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.

A.D. 1930.

SCHEDULE.

UXBRIDGE JOINT HOSPITAL DISTRICT.

Uxbridge
Order.

Provisional Order altering Confirmation Acts.

WHEREAS by virtue of the Uxbridge Joint Hospital Orders 1882 to 1929 the Urban Districts of Hayes Ruislip-Northwood Uxbridge and Yiewsley and the Rural District of Uxbridge were formed into a United District called the Uxbridge Joint Hospital District of which the governing body is the Uxbridge Joint Hospital Board;

And whereas by articles 2 and 3 of and the schedule to the Uxbridge Joint Hospital Order 1882 as amended by subsequent orders and finally by article 2 of and the schedule to the Uxbridge Joint Hospital Order 1911 it is provided that the joint board shall consist of the members specified in the order of 1911;

And whereas by article 17 of the order of 1882 as amended by subsequent orders and finally by article 4 of the Uxbridge Joint Hospital Order 1911 provision was made with respect to the contributions to be paid by the constituent authorities towards the expenses of the joint board;

And whereas by the Middlesex (Uxbridge and Yiewsley) Confirmation Order 1929 the rural district of Uxbridge was abolished and the parishes comprising that rural district were added to the urban districts of Uxbridge and Yiewsley and the last-mentioned urban district was re-named the urban district of Yiewsley and West Drayton;

And whereas by the Middlesex (Yiewsley and West Drayton Urban District) Confirmation Order 1930 the parish of Harmondsworth formerly in the rural district of Staines was added to the urban district of Yiewsley and West Drayton and by the Middlesex (Feltham Hayes Staines and Sunbury-on-Thames) Confirmation Order 1930 the parishes of Cranford and Harlington formerly in the rural district of Staines were added

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cl.]
*Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.*

to the urban district of Hayes and that district was re-named the urban district of Hayes and Harlington; A.D. 1930.

And whereas it is expedient that the orders relating to the joint board should be further altered as in this order provided :

*Uxbridge
Order.*

Now therefore the Minister of Health in pursuance of the powers conferred upon him by section 297 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows :—

1.—(1) This order may be cited as the Uxbridge Joint Hospital Order 1930 and this order and the Uxbridge Joint Hospital Orders 1882 to 1929 may be cited together as the Uxbridge Joint Hospital Orders 1882 to 1930. Short title and commencement.

(2) Except as otherwise in this order provided this order shall come into operation on the date of the Act of Parliament confirming it.

2. In this order unless the context otherwise requires—

*Interpreta-
tion.*

“ the commencement of this order ” means the date upon which this order comes into operation ;

“ the joint board ” means the Uxbridge Joint Hospital Board ;

“ the united district ” means the Uxbridge Joint Hospital District.

3. The provisions of the Uxbridge Joint Hospital Orders 1882 to 1929 shall be amended so that the united district shall as from the first day of April nineteen hundred and thirty comprise the areas of the urban districts named in column 1 of the first schedule to this order as they then respectively existed and subject to the provisions of this order references in those orders and in this order to constituent districts and constituent authorities shall be construed as references to those urban districts and the councils mentioned in column 2 of that schedule. Area of united district.

4.—(1) The joint board shall consist of twelve elective members to be elected by the constituent authorities. Constitution of joint board.

(2) The number of members of the joint board to be elected by each constituent authority shall be that opposite the name of the constituent authority in column 3 of the first schedule to

[Ch. cl.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.*

A.D. 1930. this order and that number of members of the joint board shall
— be chosen by the constituent authority from among the members
Uxbridge of the council.
Order.

First
election of
members of
joint board.

5.—(1) At meetings to be held within two months after the commencement of this order or within such further time as the Minister of Health may direct each constituent authority shall elect from among the members of the council the number of members mentioned in column 3 of the first schedule to this order to represent them on the joint board.

(2) The clerk to each of the constituent authorities shall give or send to each member of the authority not less than seven days' previous notice in writing of the meeting and shall within seven days after the meeting shall have taken place notify in writing to the clerk to the joint board the name address and occupation of each person elected by the constituent authority as a member of the joint board.

(3) The persons elected in pursuance of this article as members of the joint board shall come into office on the day on which they are elected.

(4) Each person who immediately before the commencement of this order represents one of the constituent authorities as an ex-officio member or elective member of the joint board shall continue to be a member of the joint board until the day fixed for the election by that authority of members under this article but shall then retire from office.

Contribu-
tions to
common
fund.

6.—(1) All the expenses incurred by the joint board shall be defrayed out of a common fund to which all the receipts of the joint board (including the sums payable by a constituent authority for the maintenance and care of patients from their district received into the hospital) shall be carried and the balances on the thirtieth day of September nineteen hundred and thirty standing in the accounts of the joint board to the credit or debit of a constituent authority upon the existing common fund account shall be carried to the credit or debit of the common fund established by this article.

(2) So far as the common fund is not provided by the receipts referred to in paragraph (1) of this article precepts shall be issued by the joint board to each constituent authority as a rating authority requiring them to levy as part of the general rate a rate of a specified amount in the pound and subject to the provisions of this article and to any adjustment which may be necessary in respect of payments under a previous precept the amount in the pound so specified in each precept shall be identical.

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cl.]
*Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.*

(3) In each precept the date or dates on or before which payments are required to be made on account of the precept and the amount of each such payment shall be stated.

A.D. 1930.

—
*Uxbridge
Order.*

(4) The provisions of—

(a) paragraphs (c) to (g) of subsection (2) of section 9 of the Rating and Valuation Act 1925 except the proviso to paragraph (c) and except in paragraph (d) the words from “if provision” to “urban rating area”;

(b) subsection (5) of that section; and

(c) the Rating and Valuation Act (Product of Rates and Precepts) Rules 1929 except in paragraph (1) of article 6 the words from “and in the case” to the end of that paragraph;

shall extend to precepts issued by the joint board under this article.

(5) This article shall apply to contributions to the common fund required by the joint board in respect of the half-year commencing on the first day of October nineteen hundred and thirty and in respect of each later financial year.

(6) For the purpose of the issue of precepts in respect of the half-year commencing on the first day of October nineteen hundred and thirty and of the ascertainment of the amounts due under those precepts—

(a) the product of a penny rate and the amounts due under the precepts shall be determined for that half-year instead of for the financial year ending the thirty-first day of March nineteen hundred and thirty-one;

(b) in paragraph (d) of subsection (2) of section 9 of the Rating and Valuation Act 1925 the first day of August nineteen hundred and thirty shall be substituted for the first day of February in each year as the day on which an estimate of the product of a penny rate is to be sent by a rating authority to the joint board; and

(c) in ascertaining the sum due from a constituent authority under a precept that sum shall be reduced by the amount of any credit balance of that authority which by paragraph (1) of this article is transferred to the common fund established by this order or if the balance so transferred is a debit balance the sum due under the precept shall be increased by the amount of that balance.

[Ch. cl.] *Ministry of Health [20 & 21 GEO. 5.]*
Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.

A.D. 1930.

—
Uxbridge
Order.

Repeals.

7. As from the first day of October nineteen hundred and thirty the orders mentioned in column 3 of Part I of the second schedule to this order which were confirmed by the Acts mentioned in columns 1 and 2 of that Part shall be repealed to the extent specified in column 4 and the orders mentioned in Part II of that schedule shall be rescinded :

Provided that this repeal shall not affect the recovery by the joint board of any sums which may be due to them under a precept issued before that day.

SCHEDULES.

FIRST SCHEDULE.

CONSTITUENT DISTRICTS AND AUTHORITIES AND MEMBERS OF JOINT BOARD.

1	2.	3.
Name of District.	Name of Authority.	Number of Members.
The Urban District of Hayes and Harlington.	The Urban District Council of Hayes and Harlington.	3
The Urban District of Ruislip-Northwood.	The Urban District Council of Ruislip-Northwood.	3
The Urban District of Uxbridge.	The Urban District Council of Uxbridge.	4
The Urban District of Yiewsley and West Drayton.	The Urban District Council of Yiewsley and West Drayton.	2
		12

[20 & 21 GEO. 5.] *Ministry of Health* [Ch. cl.]
*Provisional Order Confirmation (Uxbridge Joint
Hospital District) Act, 1930.*

SECOND SCHEDULE.

A.D. 1930.

REPEALS.

PART I.

CONFIRMATION ACTS AND PROVISIONAL ORDERS.

*Uxbridge
Order.*

1.	2.	3.	4.
Confirmation Act.		Order relating to the Joint Board.	
Session and Chapter.	Short title.	Short title.	Extent of repeal.
45 & 46 Vict. ch. lxi.	The Local Government Board's Provisional Orders Confirmation (No. 3) Act 1882.	The Uxbridge Joint Hospital Order 1882.	In article 2 the words "shall consist of two ex-officio and seven elective members" and article 3 article 4 so far as it is unrepealed article 17 except the words from "for the purposes of this Order" to the end of the article and the schedules.
59 & 60 Vict. ch. cvi.	The Local Government Board's Provisional Orders Confirmation (No. 11) Act 1896.	The Uxbridge Joint Hospital Order 1896.	Articles 11 and 16 and the schedules.

PART II.

ADAPTATION ORDERS OF THE LOCAL GOVERNMENT BOARD.

Date.	Short title.
7th April 1892 - -	
14th June 1905 - -	The Uxbridge Joint Hospital Order 1905.
15th November 1911 -	The Uxbridge Joint Hospital Order 1911.

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